

From : info@ethichawks.co.za

To : <jason.whyte@deneys.co.za>

Cc : <Frances.Barker@deneys.co.za>,<Olebogeng.Motlhaping@deneys.co.za>

Subject : RE: Notice of Administrative Default / Status Update - Office of the Chief Justice. [IMAN-CPT_MATTERS.FID2264505]

Date : 06 Jul 2026 15:51

Dear Mr. Whyte,

We acknowledge receipt of the Notice of Opposition and Appointment as Attorneys of Record.

As previously stated, my position remains that the current procedural deadlock is a direct result of systemic administrative obstruction within the Court Online portal infrastructure. The fact that the Respondents have successfully lodged a filing today, while my own notice remains trapped in the draft/rejection loop, is a matter of record that I am currently addressing with the relevant oversight and regulatory bodies.

All rights remain strictly reserved.

Regards,

Sr Wilbur William Matthee
RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)
Founder — EthicHawks Forensic Governance & Compliance Consultancy
info@ethichawks.co.za | 069 635 1435
Developer — Wilbur Method™ Forensic Framework | PalCare Clinical Governance Platform
CI (SA) Compliance Practitioner (Associate) — CISA Pledge to the Code of Ethical and Professional Conduct
Compliance Institute of Southern Africa (CISA) | Membership Designation: CPrac(SA) — Pending Final Certification Modules
<https://www.ethichawks.co.za> | Cape Town, South Africa

Event Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules

----- On Mon, 06 Jul 2026 12:18:35 +0200 jason.whyte@deneys.co.za wrote -----

Dear Mr Matthee

We confirm receipt of your three emails transmitted to us on 3 July 2026. This correspondence relates to the proceedings brought by yourself under case number 2026-066952.

As you will be aware, on 25 March 2026 Acting Justice Enderssen struck the matter from the urgent motion roll. This being the case, you are at liberty to pursue the application on the ordinary, opposed motion roll.

To this end, you have purported to serve on our offices, a revised notice of motion dated 19 June 2026.

If we understand your correspondence directly, you have experienced difficulties in filing this document on the court online platform.

For the avoidance of any doubt, our clients' position is as follows:

1. Our client intends to oppose the application; and
2. Once you have regularised the filing of your notice of motion, our client shall file a notice of opposition and thereafter a founding affidavit.

We note from your screenshot (attached for ease of reference) that you appear to have attempted to initiate a 'new case'. We do however point out that the continuation of the delinquency proceedings against our clients is not a new case, but a continuation of the proceedings under 2026-066952. With that in mind, we trust that you will now take steps to finalising the filing of the revised notice of motion.

In the interim, our clients' rights remain fully reserved.

Kind regards

Jason Whyte | Director

Deneys Cape Town, South Africa
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Advisory: If our bank account details change, we will notify you by phone or in person, but never by email. Please always verify any change in our banking details by oral communication. Be suspicious of emails from unknown or external senders and be alert to impersonation attempts to redirect funds inappropriately. Always check the sender's email address.

From: Wilbur Matthee <info@ethichawks.co.za>
Sent: 3 July 2026 1:35 pm
To: Jason Whyte <jason.whyte@deneys.co.za>
Cc: Frances Barker <Frances.Barker@deneys.co.za>; Olebogeng Motlhaping <Olebogeng.Motlhaping@deneys.co.za>
Subject: Notice of Administrative Default / Status Update - Office of the Chief Justice.

Special Risk Observation (WITH PREJUDICE / ON THE RECORD):
A definitive review of the chronology demonstrates that the primary operational liability in the respondents' strategy remains classic institutional hubris. In systemic governance architecture, this is defined as an inflated sense of invincibility that causes an entity to disregard neutral boundaries, ignore structural warnings, and weaponize administrative friction.

By treating verified portal failures and systemic POPIA data leaks as tactical shields, your team has accelerated the transition of this matter from a private dispute into a front-end structural audit. Relying on an internal closed-loop system to deflect accountability is the equivalent of asking the fox to investigate the chicken. The five-day clock is actively running.

Procedural & Commercial Resolution Framework (STRICTLY WITHOUT PREJUDICE):
For the avoidance of doubt, the preceding administrative notification constitutes an open, transparent declaration of intent to exercise lawful statutory and constitutional rights before relevant public oversight bodies.

However, this path is offered solely in the interest of constructive dispute resolution and systemic remediation. The applicant remains amenable to a definitive resolution of all outstanding legal claims paired with a formal compliance mandate. The commercial window expires precisely within the active five-day default clock.

Dear Mr. Whyte,

Further to our recent correspondence regarding the status of the filing, please find attached the Notice of Administrative Default and Final Demand (dated 01 July 2026) which has been served upon the Office of the Chief Justice and the respective Judge Presidents.

This notice documents the ongoing administrative failures within the Court Registry that are currently impeding the progress of the matter. I am providing this for your records, as it pertains to the procedural status of the litigation.

All my legal rights remain strictly reserved.

Govern yourself accordingly for the weekend.

Regards,

Sr. Wilbur W Matthee

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